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ATTORNEY GENERAL BONTA ISSUES STATEMENT ON LEGISLATION TO INCREASE PENALTIES FOR CORPORATE MALFEASANCE, FUND CRIME VICTIM SERVICE PROGRAMS

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SACRAMENTO, Calif., Sept. 27 -- The California Attorney General issued the following press release:

SACRAMENTO- California Attorney General Rob Bonta today issued the following statement in response to Governor Gavin Newsom signing into law Assembly Bill (AB) 2432, which will allow state courts to levy increased monetary penalties on corporations convicted of criminal offenses. Such penalties will in turn provide much-needed funding for crime victim service organizations in California, whichhelpprovide free medical care, mental health counseling, lost wages, courtroom advocacy, and temporary housing, among other forms of assistance, to victims and their families.Co-sponsoredby Attorney General Bonta,AB 2432 wasintroducedby Assemblymember Jesse Gabriel (D-Encino) and joint authored by Assemblymember Eloise Gómez Reyes (D-Colton) and Assemblymember Sabrina Cervantes (D-Riverside).

"I want to thank Governor Newsom for signing AB 2432 into law. Deterring and punishing corporate crime is a top priority at the California Department of Justice. With AB 2432, we will be better equipped to do just that,"said Attorney General Bonta. "Importantly, the increased corporate criminal penalties will used to help fund crime victim service organizations up and down our state. These organizations have been facing significant federal funding cuts, and today, we're letting them know that we have their backs."

"TheCalifornia Victims of Crime Actis about fairness and justice - when major corporations break the law, they must be held accountable,"said Assemblymember Gabriel."The enhanced penalties in this bill will ensure that bad actors cannot evade responsibility when they defraud or exploit vulnerable Californians and will provide critical funding for programs that serve some of the most vulnerable crime victims in California. I am grateful to Governor Newsom and Attorney General Bonta for their partnership in protecting public safety and funding programs that serve crime victims across California."

"I want to thank Governor Newsom for signing AB 2432,"said Assemblymember Reyes. "The focus of this legislation is ensuring justice is served by not only punishing crimes, but restoring and supporting victims. Thank you Attorney General Rob Bonta, our lead author Assemblymember Jesse Gabriel, and many of our legislative colleagues for making this victory possible. Ensuring survivors of crime are not further victimized is a priority here in California."

"AB 2432 supplies a critical new funding source for organizations throughout California that support crime victims and their families. This will help insulate crime victim service organizations from fluctuations in federal funding and ensure that survivors have access to the support they need and deserve,"said Assemblymember Cervantes. "I want to thank Governor Newsom for signing this bill into law, Assemblymember Jesse Gabriel for leading our efforts in this important cause, and Attorney General Rob Bonta for continuing to advocate for the victims of crimes."

Crime victim serviceorganizationsin all 50 states and six U.S. territorieshave been historically financed through the federal Crime Victims Fund (Fund). The Fund was established by the federal Victims of Crime Act of 1984 (VOCA) and is financed exclusively by fines and penalties levied on individuals convicted of federal crimes. The Fund is experiencing a significant decline in funding. Compared to fiscal year 2023, California suffered a 43.4% decrease in year over year funding, with the state allocation confirmed at $87,080,017 for fiscal year 2024. At the same time, unlike several other states, California has not yet updated its criminal code to take into account the size and power that corporations have now.AB 2432 will take effect on January 1, 2025.

Under AB 2432:

A copy of the legislation can be foundhere.

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